

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 28313 of 2023

Md. Saifullah Al Masud

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Harun Or Rashid, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 06.02.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Kalabagan Police Station Case No. 01 dated 01.11.2022 corresponding to G.R. Case No. 206 of 2022 under Sections 8-13 of the Santrash Birodhi Ain, 2009, now pending in the Court of learned Chief Metropolitan Magistrate, Dhaka and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that in this case under Sections 8-13 of the Santrash Birodhi Ain, 2009 the accused petitioner was arrested by police on 31.10.2022 while he was distributing leaflets of the proscribe militant organization Hijbut Tahrir.

Mr. Md. Harun Or Rashid, learned Advocate for the petitioner submits that the accused petitioner is in custody in connection of this case since 31.10.2022 but the investigation of this case has not yet been concluded. The sentence for being a member of proscribe organization is 05(five) years but in the meantime the petitioner has been languishing in custody for about one year and four months.

Mr. Sujit Chatterjee, learned Deputy Attorney General raises objection against granting of bail to the petitioner at this point.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It has been alleged that the petitioner is a member of the proscribed organization Hijbut Tahrir and he was arrested at the time of distributing leaflets of above proscribed organization. He is in custody in connection of this case since 31.10.2022 but the investigation of the case is not concluded yet.

On consideration of the material on record, we are inclined to grant bail to the petitioner.

In above view of the materials on record, we find substance in this petition and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

Let the accused-petitioner namely Md. Saifullah Al Masud, son of Abdul Hoque Chowdhury and Most. Momtaj Begum be

enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Metropolitan Magistrate, Dhaka.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.